

COMMONWEALTH OF KENTUCKY · RECORD RELIEF

Kentucky Expungement

Four adult pathways and a juvenile track, each on its own AOC form and its own clock.

GOVERNING LAW KRS 431.073 .076 · .078	CONVICTION WAIT 5 years after sentence	CERTIFICATE Required for convictions	AGENCY KSP + AOC certification
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How Kentucky is built

Kentucky does not run one expungement statute. It runs four for adults, and which form a person files turns entirely on what happened to the charge. A conviction is treated very differently from a dismissal, and a misdemeanor conviction sits on a different statute from a felony conviction. Getting the pathway wrong means the wrong form, the wrong fee, and often a missing certificate that the clerk will reject at the counter.

The cleanest way to route someone is to ask first whether the case ended in a conviction. If it did not — acquittal, dismissal, or a felony that never reached indictment — the person uses the dismissal petition (AOC-497.2) and does not need a certificate. If it did end in a conviction, the next question is felony or misdemeanor, which decides between the felony application (AOC-496.3) and the misdemeanor petition (AOC-496.2). Both conviction pathways require a certificate of eligibility first.

The four adult pathways

PATHWAY	FORM	WAIT	CERTIFICATE
Misdemeanor / violation / traffic conviction	AOC-496.2	5 yrs after sentence	Required
Class D felony conviction (or pardon)	AOC-496.3	5 yrs after sentence	Required
Acquittal / dismissal / failure to indict	AOC-497.2	60 days – 3 yrs*	Not required
Juvenile adjudication	AOC-JV-30	2 yrs after jurisdiction ends	Not required

*Dismissal waits vary by disposition — see the dismissal pathway below.

Misdemeanor convictions (AOC-496.2 · KRS 431.078)

Most misdemeanors, violations, and traffic infractions become expungeable five years after the person finishes their sentence or probation, whichever is later. The statute draws a line between a single offense (or a series from one incident), which the court must grant if the criteria are met, and multiple offenses from separate incidents, which the court may grant at its discretion. The fee is \$100 per case, and \$50 of it is non-refundable even if relief is denied.

- No felony or misdemeanor conviction in the five years before filing.
- Nothing pending or being instituted against the person.
- Not a sex offense or an offense against a child.
- ~~Not subject to enhancement for a subsequent offense, or that window has closed.~~

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Drug-possession exception: a first conviction for possession voided under KRS 218A.275(8), or a marijuana/synthetic/salvia conviction voided under 218A.276(8), can be expunged without the usual five-year wait.

Felony convictions (AOC-496.3 · KRS 431.073)

Kentucky allows expungement of most Class D felonies, and as of the June 29, 2023 amendment a person can clear multiple eligible felonies rather than just one. The form asks the petitioner to identify which eligibility basis applies — a specifically listed offense under 431.073(1)(a), or the broader catch-all under 431.073(1)(d), which requires answering a set of rehabilitation questions in section 7. Excluded throughout are sex offenses, offenses against a child, and anything that caused serious bodily injury or death.

The felony fee structure is two-tiered. There is a \$50 non-refundable filing fee due at filing, and a separate \$250 expungement fee that comes due only if relief is granted — payable in installments, but the record is not actually cleared until it is paid in full.

CRITICAL RULE

The prosecutor has 60 days to respond once served, and a hearing must occur within 120 days of filing. A certificate of eligibility must be attached to the application — the clerk cannot accept it without one.

Dismissals and acquittals (AOC-497.2 · KRS 431.076)

When a case did not end in conviction, the person uses the dismissal petition and skips the certificate entirely. The waiting period depends on how the case ended: 60 days after an acquittal or a dismissal with prejudice; one year for a misdemeanor dismissed without prejudice; three years for a felony dismissed without prejudice; and a separate track for felony charges that were held to the grand jury but never indicted. Dismissals that were traded for a guilty plea to another offense do not qualify.

Juvenile records (AOC-JV-30, JV-29, JV-29.1 · KRS 610.330)

The juvenile track has two distinct halves. Some expungements are automatic and require no petition at all: when a case is dismissed for lack of jurisdiction, dismissed to be re-diverted, or the child is found not delinquent, the court enters the AOC-JV-29 order on its own. For adjudicated offenses, the petitioner files AOC-JV-30 once at least two years have passed since the court's jurisdiction ended or the child was released from commitment. The court then enters AOC-JV-29.1 to grant or deny. Sex crimes under KRS 17.500 and violent-offender classifications under KRS 439.3401 are excluded.

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Court-completed orders: AOC-JV-29 and AOC-JV-29.1 are judicial instruments. The petitioner does not fill them out — they are reproduced here for reference so a person knows what the court will issue and what the agency-certification step looks like.

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On the horizon — automatic clean slate

Kentucky enacted an automatic expungement provision (2025 legislation) directing the State Police and AOC to begin identifying eligible convictions monthly from August 1, 2025 forward. This runs in parallel with the petition system rather than replacing it; the forms in this set remain the active route for anyone who wants relief now or whose record is not swept automatically. Worth tracking for intake, but it does not change which form a person files today.

A NOTE BEFORE YOU FILE

This reference summarizes Kentucky expungement law as of mid-2026 for self-help orientation. It is not legal advice, does not create an attorney-client relationship, and cannot account for the facts of any individual case. Statutes and AOC forms are amended often — verify the current revision with the Kentucky Court of Justice before filing.

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